

SENATE BILL 1052

By Haile

AN ACT to amend Tennessee Code Annotated, Title 36
and Title 63, relative to children.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 36-1-102(45)(B), is amended by designating the current language as subdivision (45)(B)(i) and adding the following as a new subdivision (45)(B)(ii):

(ii) Payment of financial support to or for the benefit of the child or the child's mother during the pregnancy or when the mother had physical custody of the child does not include payment of token financial support. As used in this subdivision (45)(B)(ii), "token financial support" means one (1) or more payments that constitute no more than perfunctory support or payments of such an infrequent nature or of such short duration as to merely establish minimal or insubstantial support for the child or the child's mother during the pregnancy;

SECTION 2. Tennessee Code Annotated, Section 36-1-120(b), is amended by deleting "affidavit" wherever it appears and substituting "affidavit, or declaration as permitted under Rule 72 of the Tennessee Rules of Civil Procedure,".

SECTION 3. Tennessee Code Annotated, Section 63-1-165, is amended by deleting subdivision (c)(1) and substituting:

(1) A healthcare provider shall not provide a vaccination to a minor unless the healthcare provider first receives informed consent from a parent, as defined in § 63-1-176, or legal guardian of the minor. The healthcare provider shall document receipt of,

and include in the minor's medical record proof of, such prior parental or guardian informed consent.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.